

**DEPARTMENT EIGHT
JUDGE D. SCOTT DANIELS FOR WENDY GETTY
707-207-7308
TENTATIVE RULINGS SCHEDULED FOR
THURSDAY, SEPTEMBER 10, 2026**

The parties may appear via Zoom with the exception of trials, trial management conferences, order for examinations and mandatory settlement conferences. The information for the Zoom meeting is set forth below.

The tentative ruling shall become the ruling of the court unless a party desiring to be heard contacts the judicial assistant of the department hearing the matter by 4:30 p.m. on the court day preceding the hearing, and further advises that such party has notified the other side of its intention to request a hearing. A party requesting a hearing must notify all parties of the request to be heard by 4:30.

**VALLEJO VETERANS BUILDING COUNCIL vs. STEVEN CLEMENTE, ET AL.
Case No. CU25-06895**

Motion to Continue Trial

TENTATIVE RULING:

Parties to appear.

**PENIANA TUIBUA v. JELLY BELLY CANDY COMPANY
Case No. CU25-06895**

Defendant's Motion for Summary Judgment

TENTATIVE RULING

Defendant JELLY BELLY CANDY COMPANY moves for summary judgment on Plaintiff PENIANA TUIBUA's complaint pursuant to the Private Attorneys General Act (the "PAGA") alleging wage and hour violations. Plaintiff pointedly asserts no claims for individual relief and brings her complaint solely in a representative capacity, for recovery of civil penalties only, as a member of the group of aggrieved employees.

UNDISPUTED MATERIAL FACTS

The following material facts are undisputed per Plaintiff's response to Defendant's separate statement of undisputed material facts ("D UMF") and Defendant's response to Plaintiff's separate statement of undisputed material facts ("P UMF"). Where a below fact is technically disputed but I feel the stated dispute is